

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza
Criminal Misc Case No.69085 of 2023

Sajib Datta
.... Accused-petitioner
-Versus-
The State
.... Opposite Party
Mr. Md. Shah Alam, Advocate
.... For the petitioner
Mr. Sujit Chatterjee, DAG with
Ms. Farhana Afroze Runa, A. A. G with
Mr. Abdul Aziz Masud, A. A. G. with
Md. Shamim Khan, A.A.G
... For the State

Heard and Judgment on 13.02.2024.

S M Kuddus Zaman, J:

On an application under Section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and order dated 23.06.2023 passed by the learned Additional Metropolitan Sessions Judge, Court No.05, Chattogram in Criminal Revision No.14 of 2023 rejecting the said criminal revision and thereby upholding the order dated 29.11.2022 passed by the learned Metropolitan Magistrate, Chattogram in Akbar Shah Police Station Case No.03 dated 08.07.2022 corresponding to GR No.185 of 2022 under table 14(kha)/24(kha) of the section 36(1)/38 of the Madok Drabba Niontran Ain, 2018 rejecting the application of the petitioner for custody/jimmah of the seized Private Car bearing registration No.Chatto Metro-Kha-11-1667 in

favour of should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

Facts in short are that the petitioner filed an application to the learned Metropolitan Magistrate Chattogram for getting zimma (custody) of the seized Private Car bearing registration No.Chatto Metro-Kha-11-1667, but the learned Metropolitan Magistrate, Chattogram rejected the said petition by order dated 29.11.2022.

Being aggrieved by above order the petitioner preferred Criminal Revision Case No.14 of 2023 to the Metropolitan Sessions Judge, Chattogram which was heard by the learned Additional Metropolitan Session Judge, 5th Court who rejected above revision vide impugned order dated 23.06.2023.

Challenging the legality and propriety of above order the petitioner has moved to this court and obtained this Rule.

Mr. Md. Shah Alam, the learned Advocate for the accused-petitioner submits that the petitioner is the rightful owner of above Private Car. Above Private Car is kept in the open sky in front of the Police Station which is causing serious damage to above valuable vehicle. The petitioner wants to get jimma of above Private Car and he will ensure better maintenance of the same and produce the Private Car before the Court below whenever he is asked to do so. But the learned Additional Metropolitan Sessions Judge, Court No.05, Chattogram failed to appreciate above materials on record and most illegally rejected above revisional application which is not tenable in law.

On the other hand Mr. Sujit Chatterjee, the learned Deputy Attorney General for the state opposes this petition of the petitioner for getting jimma seized Private Car.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the FIR and the Seizure list that 35 (thirly five) bottle foreign wine and 20 (twenty) bottle phensedyl were recovered from the seized Private Car.

It further turns out from the record that the petitioner is the owner of the seized Private Car.

The ultimate fate of above seized Private Car will be determined at trial. But in the meantime above Private Car which is a valuable asset requires proper maintenance. If the Private Car is given in the jimma of the petitioner who is the rightful owner of the same then the proper maintenance of the vehicle will be ensured. The petitioner shall produce above Private Car to the trial court whenever he is directed to do so.

In above view of the materials on record we hold that the learned Additional Metropolitan Sessions Judge, Court No.05, Chattogram committed an error in rejecting the application of the petitioner seeking jimma of above Private Car which is not tenable in law.

In the result, the Rule is made absolute.

The impugned judgment and order dated 23.06.2023 passed by the learned Additional Metropolitan Sessions Judge, Court No.05, Chattogram in Criminal Revision No.14 of 2023 is set aside.

The learned Additional Metropolitan Sessions Judge, Court No.05, Chattogram is directed to place above Private Car in the jimma of the petitioner with condition that the petitioner shall produce the Private Car to the trial court whenever he is directed to do so.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.